

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF POTAPOV AND OTHERS v. RUSSIA

(Applications nos. 1469/19 and 13 others –
see appended list)

JUDGMENT

STRASBOURG

25 April 2024

This judgment is final but it may be subject to editorial revision.



In the case of Potapov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 4 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention and Protocols thereto.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences; *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, as to administrative conviction for making calls to participate in public assemblies; and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under the Convention and its Protocols. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 25 April 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	1469/19 14/12/2018	**Igor Mikhaylovich POTAPOV** 1951	Glukhov Aleksey Vladimirovich Novocheboksarsk	Opposition rally Cheboksary 05/05/2018	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 community work of 20 hours	Supreme Court of the Chuvashia Republic 24/07/2018 Supreme Court of the Chuvashia Republic 24/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - two sets of the administrative-offence proceedings	3,500
2.	1480/19 14/12/2018	**Valeryan Valeryevich VIKTOROV** 1971	Glukhov Aleksey Vladimirovich Novocheboksarsk	Opposition rally Cheboksary 05/05/2018	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	community work of 20 hours fine of RUB 10,000	Supreme Court of the Chuvashia Republic 24/07/2018 Supreme Court of the Chuvashia Republic 24/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - two sets of the administrative-offence proceedings	3,500

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3.	23372/19 09/04/2019	**Aleksandr Vladimirovich KHMELEV** 1996	Olenichev Maksim Vladimirovich St Petersburg	LGBT rights event St Petersburg 04/08/2018	article 20.2 § 8 of CAO	fine of RUB 170,000	St Petersburg City Court 09/10/2018	Art. 5 (1) - unlawful detention - (i) arrest, escorting to the police station and detention on 04/08/2018 for compiling an offence report, *and* (ii) escorting to and detention at the police station after compiling an offence report for more than 18 hours between 06/08/2018 and 07/08/2018, as administrative suspect, pending trial, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	6,000
4.	23949/21 17/04/2021	**Aleksey Olegovich ZAKOLYUKIN** 1996	Shchukin Andrey Yevgenyevich Nizhniy Tagil	Rally in support of A. Navalnyy Yekaterinburg 31/01/2021	article 20.2 § 5 of CAO	community service of 30 hours	Sverdlovsk Regional Court 25/03/2021	Art. 5 (1) - unlawful detention - arrest, escorting to a police station and detention on 31/01/2021 for the sole purpose of drawing up an administrative offence report	4,000
5.	30224/21 15/05/2021	**Ivan Sergeyevich RUDAKOV** 1989	Gilmanov Mansur Idrisovich Podolsk	Rally against Constitutional Amendments Moscow 15/07/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 16/11/2020	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention between 15/07/2020 and 16/07/2020 as administrative suspect, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	33163/21 15/06/2021	**Sergey Vasilyevich PETROV** 1961	Bubon Konstantin Vladimirovich Khabarovsk	Rally in support of S. Furgal Khabarovsk 17/09/2020	article 20.2 § 8 of CAO	administrative detention of 5 days	Khabarovsk Regional Court 17/12/2020	Art. 5 (1) - unlawful detention - arrest and detention between 24/09/2020 and 25/09/2020 as administrative suspect, pending trial and after the offence record had been compiled, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000

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7.	37880/21 12/07/2021	**Anna Sergeyevna PUSHKINA** 1990	Aksenova Darya Dmitriyevna Kolomna	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 26/04/2021	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention on 31/01/2021 for the sole purpose of drawing up an administrative offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
8.	59192/21 01/11/2021	**Anastasiya Vladimirovna VISHNEVSKAYA** 1998	Markin Konstantin Aleksandrovich Velikiy Novgorod	Rally in support of A. Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention of 5 days	Moscow City Court 07/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station between 02/02/2021 and 03/02/2021 as administrative suspect, pending trial and after an offence report had been compiled, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
9.	4459/22 18/01/2022	**Yelena Anatolyevna SHUVALOVA** 1956		Rally in support of A. Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 23/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings,	3,500

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10.	7498/22 31/01/2022	**Petr Valeryevich OVCHINNIKOV** 1967	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Perm 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 15/09/2021	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention on 31/01/2021 for the sole purpose of drawing up an administrative offence report	4,000
11.	28397/22 25/05/2022	**Sergey Valeryevich BARTENEV** 1998	Yatsenko Irina Aleksandrovna Moscow	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 25/01/2022	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention between 31/01/2021 to 01/02/2021 as administrative suspect, after the offence report had been compiled, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
12.	36528/22 04/07/2022	**Andrey Yuryevich TEREKHIN** 1981	Bochilo Anna Yevgenyevna Barnaul	Anti-war rally Novosibirsk 24/02/2022	article 19.3 § 1 of CAO article 20.2 § 2 of CAO	fine of RUB 4,000 administrative detention of 8 days	Novosibirsk Regional Court 15/06/2022 Novosibirsk Regional Court 04/03/2022	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention between 24/02/2022 and 25/02/2022 as an administrative suspect, pending trial and after the offence record had been already compiled, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings (three sets of administrative-offence proceedings), Art. 10 (1) - conviction for making calls to participate in public events - conviction under article 20.2 § 2 of the CAO, sentence of administrative detention of 10 days for making calls, during the public event of 24/02/2022, for participation in another anti-war rally scheduled for 26/02/2022 (final judgment: 01/06/2022, Novosibirsk Regional Court),	5,000

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								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant on 26/02/2022 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
13.	38960/22 30/07/2022	**Mariya Vladimirovna TSYGANKOVA** 1999	Zaytsev Roman Olegovich Volgograd	Anti-war rally Volgograd 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Volgograd Regional Court 31/03/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for the sole purpose of drawing up an administrative offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	40270/22 30/07/2022	**Yelena Leonidovna SENKOVETS** 1965	Usanova Olimpiada Valentinovna Nizhniy Novgorod	Anti-war rally Nizhniy Novgorod 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Nizhniy Novgorod Regional Court 22/06/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

[1] Plus any tax that may be chargeable to the applicants.